

IV. CONCLUSION

Accordingly, defendant Liu's special motion to strike plaintiffs' complaint pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP) is DENIED.

Calendar Lines # 4

Case Name Christopher Lockhart vs Jeremy Mariscal et al

Case No. 23CV417259

Motion for an Order Attaching the Spousal Wage Earnings of Jessica Mariscal

I. BACKGROUND

On August 15, 2025, Plaintiff Christopher Lockhart filed a motion for an order attaching the spousal wage earnings of Jessica Mariscal pursuant to Civil Code of Procedure section 706.109. On June 1, 2026, the plaintiff filed two separate proof of services for the judgment debtor Jeremy Mariscal and the judgment debtor's spouse Jessica Mariscal, each indicating personal service on May 3, 2026.

The matter is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the plaintiff's notice of motion, memorandum of points and authorizes, Declaration of Leslie Holmes and attached title documents to the moving papers (totaling 12 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

California Code of Civil Procedure sections 680.010-724.260, commonly referred to as the Enforcement of Judgment Law provides: "Except as otherwise provided by law, all property of the judgment debtor is subject to enforcement of a money judgment." (Cal. Code. of Civ. Proc. § 695.010(a).) Section 695.020(a) states that "[c]ommunity property is subject to enforcement of a money judgment as provided in the Family Code."

An earnings withholding order may not be issued against the earnings of the spouse of a judgment debtor except by court order upon noticed motion. (Cal. Code. of Civ. Proc. § 706.109).

Furthermore, "[e]xcept as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." (Cal. Fam. Code § 910(a)).

III. ANALYSIS

Here, plaintiff moves for an order permitting it to garnish the wages of the judgment debtor, Jeremy Mariscal's spouse, Jessica Mariscal's earnings. On March 10, 2025, the Honorable Panthea Saban granted default judgment to the plaintiff in the amount of \$79,475.68 against the judgment debtor Jeremy Mariscal and Circle Pi Motors. (Default Judgment dated March 10, 2025). The total award of \$79,475.68 is comprised of the principal debt of \$68,242.36, attorney's fees of \$3,101.10, and prejudgment interest at the rate of \$18.70 per day from February 10, 2025 per Judge Saban's orders. Plaintiff asserts that the present total sum due is \$84,406.73 due to allowable costs for enforcement and post-judgment interest.

The Plaintiff asserts that at the time the debt was incurred, Jesscia Mariscal and Jeremy Mariscal were married and their earnings constitute community property under Code of Civil Procedure section 706.109. (Plaintiff's motion, p. 2). The plaintiff asserts that the judgment debtor is still married to his spouse Jessica Marsical, who is an employee at Kaiser Permanente. (*Id.*, at p. 3; Declaration of Holmes).

Plaintiff's counsel Leslie Holmes submitted a declaration attesting that the above belief is based on a "...a variety of sources, including but not limited to social medial account activity, recorded Interspousal Transfer Deed, and the like." (Declaration of Holmes, p. 5). Plaintiff's counsel also attached screen shots of Jesscia Mariscal's social media page "...facebook page indicating that she is married to Jeremy Mariscal along with an Interspousal Transfer Deed that was recorded in Santa Clara County." (*Id.*).

The Court notes that plaintiff's counsel's declaration was "[e]xecuted this 15th date of August, 2024. . ." which was a year before the motion as filed and prior to the default judgment authorized on March 10, 2025. This may be a scrivener's error as to the year. Even if the year reflected was a mistake and was executed in 2025, the Declaration is ten months old. The Declaration does not set forth efforts in attempting to resolve the debt with the judgment debtor or show collection efforts. The Facebook snap showing the date of February 16, 2021 is not authenticated and does not currently reflect the judgment debtor and Jesscia Marsical's current martial status. The interspousal transfer deed is dated February 25, 2020 and does not provide a current marital status update.

Plaintiff counsel does not provide any information regarding attempts to recover the judgment from the judgment debtor Jeremy Mariscal or Circle Pi Motors or efforts to resolve this judgment through settlement negotiations or compromise. There is no information as to why the plaintiff has been unable to satisfy its judgment with Jeremy Mariscal or Circle Pi Motors by recording liens, bank levy or so forth before garnishing the wages of his spouse Jessica Mariscal.

While California law provides that wages of a spouse during marriage is generally community property, and a judgment creditor may move for a court order withholding against a judgment debtor's spouse, the evidence proving the state of the marriage currently is deficient. Plaintiff must submit a public record evidence as to the current marital relationship as well as set forth evidence on attempts to collect or resolve the judgment with the judgment debtor Jeremy Mariscal or Circle Pi Motors.

IV. CONCLUSION

Based on the foregoing, the motion is DENIED without prejudice.

Calendar Lines # 5
Case Name Mark Sivertsen vs Ford Motor Company et al
Case No. 24CV429470
Motion for Attorney's Fees

I. BACKGROUND

Before the court is Plaintiff's motion for attorney's fees, costs and enhancer based on a resolution of claim arising out of Plaintiff's 2020 Ford Ranger, vehicle identification number 1FTER4EH9LLA70293, which was brought under the Song-Beverly Consumer Warranty Act. (Plaintiff's Motion, p. 7). Plaintiffs asserts it is the prevailing party after a 998 Agreement was signed for a \$70,0000 in resolution of the case and attorney's fees, costs, and